



SUNSHINE GUARD SERVICES LTD

Data Privacy Notice & Consent for Personnel

This notice is provided in compliance with the Nigeria Data Protection Act, 2023 ("NDPA") and the Nigeria Data Protection Act General Application and Implementation Directive ("GAID"). It explains what personal data Sunshine Guard Services Ltd ("the Company", "we", "us") collects through the Personnel App, why we collect it, how it is used, and your rights as a data subject. Please read this notice carefully before you sign up.

1. Who we are (Data Controller)

Sunshine Guard Services Ltd is the Data Controller responsible for your personal data collected through this app.

Company name	Sunshine Guard Services Ltd
Registered address	44, Charity Road Abule-Egba, Lagos
Data Protection contact	Peter Aminu – aminu4235@gmail.com
Regulator	Nigeria Data Protection Commission (NDPC) — ndpc.gov.ng

2. What personal data we collect

Through the Personnel App, we collect the following categories of personal data about you:

- **Identity & contact data:** full-name, phone number, email address, employee ID, designation (Guard or Supervisor), emergency contact details.
- **Profile & verification data:** profile photograph; photographs taken at clock-in showing you in uniform, used to verify duty compliance.
- **Location data:** real-time and logged GPS location while you are clocked-in used to confirm you remain within your assigned site geofence.
- **Attendance data:** clock-in and clock-out timestamps, total hours worked, shift schedule and site assignment.
- **Incident data:** details you submit when logging an incident, including description, category, severity, timestamp, location, and any photos or videos attached.
- **Device & technical data:** device identifiers and app usage data necessary for the app to function securely.

3. Why we process your data (purpose and legal basis)

We process your personal data for the following purposes, relying on the legal bases shown, in line with Section 25 of the NDPA:

Purpose	Legal basis
Verifying your identity and uniform compliance at clock-in	Consent; performance of your employment contract
Confirming you remain at your assigned post (geofencing)	Consent; legitimate interest in client site security

Recording attendance and calculating hours worked	Performance of your employment contract
Receiving and acting on incident reports, including emergencies	Consent; legitimate interest; vital interest where Safety is at risk.
Administering your account, role and site assignment	Performance of your employment contract
Complying with labor, payroll and regulatory obligations	Legal obligation

4. Who we share your data with (recipients)

- Authorized administrators and supervisors within the Company, strictly for operational and safety oversight.
- Client organizations whose sites you are assigned to protect, limited to attendance confirmation and incident reports relevant to their site.
- Service providers, who host or support the app's infrastructure, bound by confidentiality and data processing agreements.
- Law enforcement, regulators, or courts, where required by law or to protect life and safety.
- We do not sell your personal data, and we do not share it with third parties for marketing purposes.

5. Cross-border transfer

Your personal data is stored on servers located within Nigeria. We currently use MongoDB as our database platform to store this data; this hosting arrangement may be reviewed and updated by the Company from time to time as our infrastructure needs evolve. Should we ever transfer personal data outside Nigeria, we will ensure the destination country has an adequate level of data protection or that appropriate safeguards are in place, and we will update this notice accordingly, as required under the NDPA.

6. How long we keep your data

We retain attendance, location, and incident records for 36 months after the end of your engagement with the Company, or longer where required for legal, payroll, or dispute-resolution purposes. Data no longer needed is securely deleted or anonymized.

7. How we protect your data

We apply technical and organizational safeguards, including encrypted data transmission, access controls limiting who can view your data, and regular review of our security measures, in line with our obligations under the NDPA to protect personal data from loss, misuse, or unauthorized access.

8. Your rights as a data subject

Under the NDPA, you have the right to:

- Be informed about how your personal data is processed (this notice).
- Access a copy of the personal data we hold about you.
- Request correction of inaccurate or incomplete data.
- Request erasure of your data where it is no longer needed, subject to our legal and operational retention requirements.
- Object to or request restriction of certain processing, including automated decisions that significantly affect you.
- Request data portability, where applicable.
- Withdraw consent at anytime, without affecting the lawfulness of processing carried out before withdrawal.
- Lodge a complaint with the Nigeria Data Protection Commission (NDPC) if you believe your data privacy rights have been violated.

To exercise any of these rights, contact our Data Protection contact using the details in Section 1.

9. Consequences of not consenting

Location tracking, uniform-verification photographs, and attendance logging are necessary for your role as Company personnel and for the safety and security services we provide to clients. If you do not consent to this processing, we may be unable to assign you to shifts or continue your engagement with the Company.

10. Changes to this notice

We may update this notice from time to time to reflect changes in our practices or the law. We will notify you of material changes through the app before they take effect.

Consent Declaration

By ticking "I agree" below and proceeding with sign-up, I confirm that I have read and understood this Data Privacy Notice, and I freely, specifically, and unambiguously consent to Sunshine Guard Services Ltd collecting and processing my personal data, including location and photographic data, as described above.

☒ I agree

Full name: _____

Employee ID: _____

Date: _____

This document is a template privacy notice drafted to align with publicly available guidance on the Nigeria Data Protection Act, 2023 and its General Application and Implementation Directive. It is provided for informational purposes and should be reviewed by a qualified Nigerian data protection lawyer, and completed with the company's specific details (address, contact, retention periods, cross-border transfer position), before use in production.